

24STCV34807 24STCV34807

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV34807

GLORIA

JEAN LAWRENCE vs GENERAL MOTORS LLC

August

31, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT GENERAL MOTORS MOTION FOR SUMMARY JUDGMENT.

RULING:

The Court denies the Motion.

Plaintiff to give notice.

I.

BACKGROUND

On December 31, 2024, GLORIA

JEAN LAWRENCE (Plaintiff) filed a Lemon Law Complaint against GENERAL MOTORS LLC (Defendant), alleging Causes of Action under the Song-Beverly Consumer Warranty Act (Civ. Code §§ 1790-1795.8).

Plaintiff alleges being a married purchaser, and later the successor-in-interest of the spouse's claims, as to their contemporaneous buying of a 2021 Buick Enclave that Defendant manufactured, which had defects including, "engine and related systems, check engine light on, vehicle running rough, faulty spark plug, transmission and related systems, faulty temperature valve, push to start inoperative, leaky radiator tank,..." (E.g., Complaint, ¶ 8.) Plaintiff further alleges that Defendant failed to repair the vehicle within a reasonable number of attempts and did not promptly replace it or make restitution.

On April 31, 2026,

Defendant filed the Motion for Summary Judgment, essentially because the purchase agreement for the subject vehicle does not show Plaintiff as being the buyer and Plaintiff has provided no discovery to the contrary.

Plaintiff opposes, based

on arguments such as that Plaintiff satisfies the buyer requirement, where spouses jointly purchased the vehicle in the husband's name, after which Plaintiff made the payments and drove the vehicle. Additionally, Plaintiff, as a statutory successor-in-interest, asserts standing to sue based upon the deceased husband's own claims.

II.

LEGAL STANDARD

While generally an issue

of law, the issue of standing to sue can be a triable issue of material fact. (E.g., *Chavez v. Carpenter* (2001) 91 Cal.App.4th 1433, 1448 ["there is a

disputed material fact question concerning appellants' financial dependence on decedent. Appellants' standing therefore should not have been summarily adjudicated."].)

"Standing requirements

will vary from statute to statute based upon the intent of the Legislature and the purpose for which the particular statute was enacted." (Blumhorst v. Jewish Family Services of Los Angeles (2005) 126 Cal.App.4th 993, 1000. Accord, Surrey v. Truebeginnings (2008) 168 Cal.App.4th 414, 417-418, disapproved

on other grounds by White v.

Square, Inc. (2019) 7 Cal.5th 1019, 1032.)

"The legislature is ... presumed to have enacted

legislation with existing law in mind." (Harris

v. Verizon Communications (2006) 141 Cal.App.4th 573, 585, disapproved on

other grounds by Azure Ltd. v.

I-Flow Corp. (2009) 46 Cal.4th 1323, 1336.) Issues of legislative

interpretation involve pure questions of law that reviewing courts

independently review de novo, without any deference to trial courts. (E.g., Wolf v. CDS Devco (2010) 185

Cal.App.4th 903, 913; Regents of Univ. of

Cal. v. Superior Court (1999) 20 Cal.4th 509, 531.)

III.

ANALYSIS

Defendant contends that

Plaintiff failed to produce, in discovery, any evidence to show that she purchased the subject vehicle.

Plaintiff summarizes opposing

positions as follows: "Plaintiff has standing to prosecute this action on two independent grounds: as a 'buyer' under Bishop v. Hyundai Motor America (1996) 44 Cal.App.4th 750, and as Leroy Lawrence's successor in interest under Code of Civil Procedure sections 377.30 and 377.32." (Opposition, p. 7.)

"[A]

person who is not a buyer does not have standing to pursue a claim under the [Song-Beverly Consumer Warranty] Act,..." (Towns v. Hyundai Motor Am. (2025) 117 Cal.App.5th 958, 962.) The Song-Beverly Consumer Warranty Act contains no references to "de facto buyers." (Ibid., p. 969 [plaintiff

had failed to evidence a vehicle purchased by the spouse by using community property[.])

In

another case, which Plaintiff cites, without any issue having been raised about the “buyer” requirement, the Court there applied related law as to parents signing a vehicle purchase agreement on behalf of their 17-year-old who made the payments. (See *Bishop v. Hyundai Motor Am.* (1996) 44 Cal.App.4th 750, 753.) Since there the parties did not assert any disagreement about the nonsignatory child being the buyer, there is no holding to rely upon. “ ‘A decision, of course, does not stand for a proposition not considered by the court.’ ” (*Flatley v. Mauro* (2006) 39 Cal.4th 299, 320. See also *Bosworth v. Whitmore* (2006) 135 Cal.App.4th 536, 550 [“appellate opinions are not authority for unconsidered propositions....”].)

However,

in a Song-Beverly case, a “party affected by the breach and the efforts to have the vehicle repaired” theoretically could be a party plaintiff. (*Patel v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 1007, 1018 [dicta regarding nonexistent factual scenario mentioned in that case].)

A

treatise interprets applicable law as follows: “The Song-Beverly Consumer Warranty Act (Song-Beverly Act, Civ.C. § 1791 et seq.) permits a ‘buyer of consumer goods’ to bring an action for violations of the Song-Beverly Act. [Civ.C. § 1794; see Civ.C. § 1791(b)—defining ‘buyer’ as “any individual who buys consumer goods’ from retailer; *Towns v. Hyundai Motor America* (2025) 117 CA5th 958, 969-970, 341 CR3d 37, 45-46—only car buyer, not driver or “de facto buyer,” has standing].” (Cal. Prac. Guide Civ. Pro. Before Trial, § 2:39.14b [available on Westlaw].)

As

described above, the Court determines that the scope of the definition of “buyer” in the Song-Beverly Act has not yet been clearly decided and remains debatable in relation to de facto buyers, such as spousal purchasing, buyers’ agents, jointly negotiating nonsignatory, and community property purchasing.

As

for the second argument, the Court’s independent research has turned up no governing law addressing successors-in-interest specifically in the context of

Song-Beverly cases.

Generally,

causes of action that survive a plaintiff's death may be commenced by the decedent's appointed personal representative or a successor-in-interest. (Code Civ. Proc., §§377.30, 377.34.) Code of Civil Procedure section 377 .11 defines the term "decedent's successor in interest" as "the beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action." "[S]urvival statutes do not create a cause of action but merely prevent the abatement of the decedent's cause of action and provide for its enforcement by the decedent's personal representative or successor in interest." (Adams v. Superior Court (2011) 196 Cal.App.4th 71, 79.)

Regarding standing as a

successor-in-interest, Defendant argues that, "[i]f the California legislature wanted the successor-in-interest statute to replace the 'buyer' requirement under Song-Beverly it would have done so." (Reply, 3:3-5.) However, neither side cited governing law about a successor-in-interest in the context of Song-Beverly claims. Courts construe statutes with reference to the entire system of law, to harmonize, while avoiding anomalies. (Hohenshelt v. Superior Court (2025) 18 Cal.5th 310, 332.) The Song-Beverly Act does not express any inapplicability of coexisting law concerning survival actions.

As for the respective

burdens of proof, the Court concludes that Defendant failed to meet the burden to show that Plaintiff cannot be a buyer or successor-in-interest as a matter of law. "A legal proposition asserted without apposite authority necessarily fails." (People v. Taylor (2004) 119 Cal.App.4th 628, 643.)

And the Installment Sales

Contract is not necessarily determinative of the purchaser's identity. "[I]t is not the presence or absence of a signature which is dispositive; it is the presence or absence of evidence of an agreement...." (Banner Entertainment, Inc. v. Superior Court (1998) 62 Cal.App.4th 348, 361 [finding a complete absence of proof of circumstances showing assent]. See also, e.g., Saint Agnes Medical Center v. PacifiCare of Cal. (2003) 31 Cal.4th 1187, 1200 [finding assent because parties did not deny agreeing to the terms].)

Alternatively, assuming that the burden shifted, the Court determines that there are triable issues of material fact as to whether (1) Plaintiff jointly agreed to purchase the vehicle without a signature on the Installment Sales Contract, (2) the vehicle is community property, (3) Plaintiff was a third party affected by statutory repair violations, and (4) Plaintiff is a successor-in-interest to deceased spouse's claims. (E.g., Plaintiff's Declaration, filed 8/11/26, ¶¶ 2-6; Amended Declaration of Gloria Jean Lawrence Pursuant to Code of Civil Procedure Section 377.32, filed 5/4/26, ¶¶ 2-8.)

IV.

CONCLUSION

The Court overrules Plaintiff's evidentiary objections, filed August 11, 2026, as to authenticated discovery. Attorneys with personal knowledge of discovery in the litigation are competent to testify that they obtained information as discovery responses. (Luckman Partnership, Inc. v. Superior Court (2010) 184 Cal.App.4th 30, 34-35 [counsel properly authenticated interrogatory responses by declaring personal knowledge that the documents were the party's responses]; Wall Street Network, Ltd. v. N. Y. Times Co. (2008) 164 Cal.App.4th 1171, 1183 ["declaration establishes that her personal knowledge of the litigation rendered her competent to testify that respondents had obtained the materials ... through discovery."]; Barnick v. Longs Drug Stores, Inc. (1988) 203 Cal.App.3d 377, 380, fn. 3 [attorney's declaration sufficient to authenticate the answers received to interrogatories].) Moreover, where opposing plaintiffs answered a defendant's comprehensive interrogatories, indicating that plaintiffs had no specific facts supporting their claims and that they have no further information responsive to the interrogatories, then defendants moving for summary judgment may be able to satisfy the initial burden of proof. (Andrews v. Foster Wheeler LLC (2006) 138 Cal.App.4th 96, 107.)

Finally, the Court denies the Motion for Summary Judgment, for reasons set forth above.